

Calendar Line 3**Case Name:** *Ali Abhari v. Jaguar Land Rover North America, LLC***Case No.:** 23CV412715

This matter was originally brought as an ex parte application by plaintiff Ali Abhari to compel the person-most-knowledgeable (“PMK”) deposition of defendant Jaguar Land Rover North America, LLC (“Jaguar”). As the court noted in its October 8, 2024 order on the application, a motion to compel must be filed as a noticed motion. Abhari should have filed the motion to compel on regular notice and *then* filed an ex parte application to shorten time to hear the motion.

In the October 8, 2024 order, the court set this matter for a hearing on December 5, 2024, expecting to hear more from the parties regarding the status of scheduling the deposition. The court has not received anything. In its prior order, the court did note that Jaguar’s proposal to have the deposition taken in February 2025 was too late. Jaguar’s response to the ex parte application focused solely on the impropriety of having a motion to compel be heard as an ex parte application. It did not address the merits of the application—*i.e.*, the question of timing—other than to say that its proposed witness’s “schedule” did not allow a deposition before February 13, 2025.

Not having heard anything further from the parties, the court is inclined to grant the motion and order that the deposition occur within 30 days—*i.e.*, by no later than January 4, 2025. But the court would like an update from the parties before making a final decision. If the parties do not appear for the hearing on December 5, 2024, then the court will take this matter off calendar.

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Calendar Line 4**Case Name:** *Christopher Novak v. Charles Ross et al.***Case No.:** 24CV428693

Defendant Charles Ross moves to compel initial responses to form interrogatories, special interrogatories, and inspection demands from plaintiff Christopher Novak. In addition, Ross seeks an order deeming RFAs admitted, given the absence of timely responses. In opposition, Novak argues that the motion is now moot, as he served written responses “[p]rior to the service of this opposition” on November 20, 2024. (Opposition, p. 2:1.) It is not exactly clear when Novak served these responses—neither side identifies the date(s) in their papers, and neither side has attached copies of these responses—but it is apparent that they were provided three or four months after than the original deadline of mid-July 2024.

The court agrees with Novak that the motion to compel responses and to deem RFAs admitted is largely moot. Although Ross argues that Novak’s RFA responses (and form interrogatory responses) are not in “substantial compliance” with the rules, and that this court should therefore “deem this a request to have Defendant [sic] Request for Admissions, [sic] Admitted” (Reply, p. 4:19-23), he fails to show any inadequacy in his reply papers. Again, *neither side* has submitted the tardy responses with their papers, and so the court has no way of determining whether they are in “substantial” compliance or not. The court therefore rejects Ross’s request.

At the same time, the court finds that Novak fails to provide a reasonable explanation for why his responses were three to four months late. He simply claims that the delay “was clearly not a malicious act meant to gain a litigation advantage.” (Opposition, p. 2:15-16.) This is inadequate. The court finds that Novak did not act with substantial justification in forcing Ross to incur the expense of bringing this motion. Although the court finds Ross’s request for \$2,700 to be excessive for such a simple motion, the court will order Novak to pay Ross **\$900.00** (five hours at counsel’s hourly rate of \$180/hour) within 30 days of notice of entry of this order. As a reminder, the purpose of discovery sanctions is compensatory, not punitive.

In short, the court DENIES Ross’s motion to compel responses and to deem RFAs admitted. The court GRANTS IN PART Ross’s request for monetary sanctions.

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